



An Assignment on
Summary of Different Statutory Laws of Muslim Law

Course Name: Muslim Family Laws
Course Code: 0421 28 Law 1201

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Year 1st, Term 2nd
Law Discipline

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1. Introduction

The legal framework governing Muslim family matters in Bangladesh is a unique blend of uncodified religious personal law and modern statutory law. While the substantive principles are largely derived from the Hanafi school of Sunni jurisprudence, the Parliament of Bangladesh and its legislative predecessors have enacted a series of crucial statutes over the years like the foundation of Muslim family law is based on Islamic Shari'ah, but to meet social changes and modern needs, various statutory laws have been introduced such as The Muslim Family Laws Ordinance, 1961, The Dissolution of Muslim Marriages Act, 1939, and The Child Marriage Restraint Act, 2017. These laws were created to codify certain principles, introduce social reforms, provide procedural clarity, and address issues that were not adequately covered by classical law. This assignment aims to provide a concise summary of the purpose, key provisions, and overall significance of the most important statutes that shape and regulate Muslim family law in Bangladesh today.

2. The Key Statutes

2.1 The Muslim Personal Law (Shariat) Application Act, 1937

This foundational Act was enacted to abolish the application of local and family customs that were contrary to Islamic principles. Before this Act, many communities followed customs that, for example, denied women their Qur'anic right to inheritance. The Act's primary objective was to establish the supremacy of the Shari'ah as the rule of decision for Muslims in specific personal matters.

Section 2 of the Act is its cornerstone. It mandates that in all questions regarding intestate succession (inheritance), special property of females, marriage, dissolution of marriage, dower, maintenance, guardianship, and gifts, the rule of decision shall be the Muslim Personal Law (Shari'ah).

This Act legally defined the scope of Muslim Personal Law in the subcontinent and was instrumental in securing the rights of Muslim women, particularly in matters of inheritance.

2.2 The Dissolution of Muslim Marriages Act, 1939

The Dissolution of Muslim Marriages Act, 1939, is a landmark piece of legislation in the history of family law in the Indian subcontinent, including what is now Bangladesh. It was enacted to provide Muslim women with a legal recourse to dissolve their marriage, a right that was not easily available to them under the then-prevalent interpretations of Hanafi school of Islamic jurisprudence.

This was a landmark piece of social reform legislation. Under the classical Hanafi law applied in British India, a wife had extremely limited grounds to seek a divorce from a court. This Act was passed to codify and significantly expand the grounds upon which a Muslim woman could obtain a judicial decree of divorce (Faskh).

Section 2 of the Act provides a clear, exhaustive list of grounds, including the husband's failure to provide maintenance for two years, his

imprisonment for seven years, his cruelty (both physical and mental), and the wife's exercise of her "Option of Puberty."

This Act dramatically empowered Muslim women by providing them with a clear and effective legal remedy to exit an abusive or unworkable marriage.

2.3 The Muslim Family Laws Ordinance, 1961 (MFLO)

The Muslim Family Laws Ordinance (MFLO) of 1961 is a highly influential law in Bangladesh that introduced significant reforms to Muslim personal law. The main goal of this ordinance was to modernize certain aspects of family law, protect the rights of women, and regulate key issues like marriage, divorce, and inheritance. It aimed to address practices that were considered unfair, particularly towards women.

Here are the key points of the ordinance in short:

- **Regulation of Polygamy:** The MFLO made it more difficult for a man to have more than one wife. It requires a husband who wants to marry another woman to get written permission from an "Arbitration Council." This council, which includes representatives of both the husband and the existing wife (or wives), must be satisfied that the subsequent marriage is necessary and just before granting permission. Marrying again without this permission is a punishable offense.
- **Formalizing Divorce (Talaq):** The ordinance introduced a formal procedure for divorce. A husband who wishes to divorce his wife must give a written notice to the local government chairman and send a copy to his wife. The divorce does not become effective immediately. There is a 90-day waiting period, during which the chairman forms an Arbitration Council to try and bring about a reconciliation between the couple. The divorce only becomes final after this period if no reconciliation is achieved. This was designed to prevent hasty and arbitrary divorces.

- **Wife's Right to Initiate Divorce:** The law also clarified the process for a wife to initiate divorce if the right of divorce (talaq-e-tafwid) was delegated to her in the marriage contract (nikahnama). The same procedure of notifying the chairman and attempting reconciliation applies.
- **Inheritance Rights of Grandchildren:** One of the most significant changes introduced by the MFLO relates to inheritance. Before this law, if a son or daughter died before their parent, their own children (the grandchildren) would not inherit anything from the grandparent's property. Section 4 of the ordinance changed this, stating that the children of a predeceased son or daughter are entitled to receive the share that their parent would have inherited.
- **Mandatory Registration of Marriages:** Although the provision for registration was later incorporated into the Muslim Marriages and Divorces (Registration) Act of 1974, the MFLO was a key step towards making the registration of all Muslim marriages compulsory. This helps to provide legal proof of marriage, which is crucial for protecting the rights of women regarding dower, maintenance, and inheritance.
- **Maintenance:** The ordinance provides a mechanism for a wife to claim maintenance from her husband if he fails to support her adequately. She can apply to the chairman of the local government, who will then form an Arbitration Council to decide on the matter and issue a certificate specifying the amount of maintenance to be paid.

In summary, the Muslim Family Laws Ordinance of 1961 was a landmark piece of legislation that introduced important procedural safeguards and reforms to protect family structures and the rights of women within the framework of Muslim personal law in Bangladesh.

2.4 The Muslim Marriages and Divorces (Registration) Act, 1974

The Muslim Marriages and Divorces (Registration) Act of 1974 is a crucial piece of legislation in Bangladesh that makes it mandatory to register all Muslim marriages and divorces. The primary goal of this law is to provide a formal record of these significant life events, which helps to protect the rights of individuals, especially women and children.

Prior to this Act, there was no uniform system for recording marriages and divorces, which often led to disputes over the legitimacy of a marriage, rights to inheritance, and the financial claims of a divorced wife. By requiring registration, the Act provides an official document that serves as legal proof of the marriage or divorce.

Key features of the Act include:

- **Mandatory Registration:** The Act states that every marriage and divorce under Muslim law must be registered. This is a significant departure from previous practices where registration was not compulsory.
- **Nikah Registrars:** The government is responsible for appointing and licensing Nikah Registrars in different areas. These registrars are authorized to register marriages and divorces and maintain official records.
- **Legal Proof:** The registration certificate issued by the Nikah Registrar is a legally recognized document. It can be used as evidence in court to prove a marriage or divorce, which is vital for resolving issues related to dower, maintenance, and custody of children.
- **Penalties for Non-Registration:** The Act includes penalties, such as fines or imprisonment, for those who fail to register their marriage. This underscores the seriousness of the registration requirement.
- **Protection of Rights:** By ensuring a formal record, the Act helps to prevent disputes and protect the rights of both parties. For women,

it provides a clear basis for claiming their dower (mahr) and other financial rights in the event of a divorce.

In essence, The Muslim Marriages and Divorces (Registration) Act, 1974, established a formal and legally binding system for recording marriages and divorces among Muslims in Bangladesh, thereby providing greater legal certainty and protection for all parties involved.

2.5 The Family Courts Ordinance, 1985

The Family Courts Ordinance of 1985 was a landmark law in Bangladesh created to deal specifically with family-related legal disputes. Before this ordinance, family matters were handled in regular civil courts, which often resulted in long delays. This law established special Family Courts to provide quicker and more efficient justice for sensitive family issues.

The main purpose of the ordinance was to create a dedicated legal forum for resolving conflicts in a more amicable and timely manner. These courts were given exclusive jurisdiction, meaning only they could hear cases related to five specific areas:

- **Dissolution of marriage** (divorce)
- **Restitution of conjugal rights** (a legal claim to restore a marriage)
- **Dower** (the money or property a wife is entitled to from her husband)
- **Maintenance** (financial support)
- **Guardianship and custody of children**

A key feature of the Family Courts was a simplified legal process. To speed up cases, the ordinance bypassed some of the complex procedures of the main Code of Civil Procedure and the Evidence Act. It also introduced provisions for pre-trial hearings to encourage reconciliation and settlement between the parties before a full trial. While this ordinance has since been replaced by the Family Courts Act of

2023, it laid the essential groundwork for the family law justice system in Bangladesh for decades.

2.6 Pita-Matar Bharan-Poshan Ain, 2013 (Maintenance of Parents Act)

The **Pita-Matar Bharan-Poshan Ain, 2013**, known in English as the **Maintenance of Parents Act, 2013**, is a significant piece of social legislation in Bangladesh. It legally requires children to provide for the well-being of their parents and, in their absence, their grandparents. This Act transforms the moral and social duty of caring for elderly family members into a legal obligation, providing a formal support system for them.

The primary goal of the Act is to ensure that elderly parents are not neglected and receive necessary financial and personal support from their children. "Maintenance" under this law is broadly defined to include essentials such as food, clothing, shelter, and medical care.

The Act makes it a legal duty for every child to provide maintenance for their parents. If the parents are not alive, this responsibility extends to the paternal and maternal grandparents.

A crucial provision of the law is that children cannot force their parents to live in an old age home or any other place against their will.

Children are legally required to keep in regular contact with their parents and look after their physical and mental health.

Failure to comply with the law is a punishable offense. A child found guilty of not maintaining their parents can face a fine of up to 1 lakh Taka. If the fine is not paid, it can lead to imprisonment for up to three months. Aiding or abetting in the neglect of parental maintenance is also a punishable offense.

In essence, the Pita-Matar Bharan-Poshan Ain, 2013, provides a legal safety net for elderly parents, ensuring they are cared for in their old age and have legal recourse if their children neglect their responsibilities.

3. Conclusion

The statutory laws governing Muslim family law in Bangladesh demonstrate a clear legislative trend towards reform, codification, and the protection of vulnerable parties. From establishing the supremacy of Shari'ah with the 1937 Act to the wide-ranging reforms of the 1961 Ordinance and the creation of specialized courts in 1985, the state has actively shaped the application of personal law. These laws, including the Child Marriage Restraint Acts, Muslim Family Laws Ordinance, Dowry Prohibition Act, and laws on marriage, divorce, and guardianship, provide clear rules for marriage, divorce, maintenance, inheritance, and protection against abuse. They ensure justice, prevent exploitation, and promote equality within families. These statutes do not replace the foundational principles of the Shari'ah but rather provide a modern procedural framework to ensure that justice is administered effectively and that the rights of women, children, and the elderly are properly safeguarded.